

MEDICAID HOME AND COMMUNITY-BASED WAIVER SCOPE OF SERVICES
FOR

SKILLED RESPITE (MCC)

A. Objective

The objective of Skilled Respite services is to provide temporary care in the home for Medically Complex Children (MCC) waiver Participants. This service provides temporary relief for the primary caregivers to help maintain the participant at home.

B. Conditions of Participation

1. The Provider must agree to participate in the Electronic Visit Verification system (EVV) monitoring and payment system.
 - a. EVV billing activity must be completed upon arrival at and departure from the participant's home.
2. The Provider must utilize any other automated systems mandated by LTSS to document and bill for the provision of services.

C. Description of Services to be Provided

1. The unit of service must be in one (1) hour increments. Participants can receive a maximum of 12 hours per month for the combination of skilled and unskilled respite services.
2. The number of units of service authorized to each participant must be dependent upon the participant's needs as established and set forth in the participant's Care Plan. Skilled Respite services may be provided for a specific period as stated in Service Provision Form.
3. Skilled Respite services must provide skilled medical care as ordered by a physician and performed by a Registered Nurse or Licensed Practical Nurse with pediatric experience in compliance with the Nurse Practice Act and S. C. Code of Laws, Regulations, Chapter 91, State Board of Nursing.
4. Skilled Respite services must include assistance with activities of daily living and instrumental activities of daily living as needed by the participant during the respite period.

D. Staffing

1. The provider must have staff that meets the following requirements:

- a. Currently licensed by the State of South Carolina to practice nursing.
- b. At least two (2) years' experience with the pediatric population in a public health, hospital, or long-term care setting; as evidenced by work experience documented and maintained in the employee personnel file.
- c. The provider must verify nurse licensure at time of employment and must ensure that the license remains active and in good standing at all times during employment. The provider must maintain a copy of the current license in the employee's personnel file. Nurse licensure can be verified at the State Board of nursing website.

<https://verify.llronline.com/LicLookup/Nurse/Nurse.aspx?div=17>

2. Conditions for Qualification for Service

- a. A SLED criminal background check is required for all employees prior to hire and at least every two years thereafter to include employees who will provide direct care to SCDHHS/SCDDSN participants and all administrative/office employees (office employees required to have SLED background checks include: administrator, office manager, nurse supervisor, and persons named on organizational chart in management positions). All SLED criminal background checks must include all data for the individual with no less than a ten (10) year timeframe being searched. The SLED criminal background check must include statewide data. The statewide data must include South Carolina and any other state or states the worker has resided in within the prior (10) ten years. Potential employees with felony convictions within the last ten (10) years cannot provide services to SCDHHS/SCDDSN participants or work in an administrative/office position. Potential employees with non-violent felonies dating back ten (10) or more years can provide services to SCDHHS/SCDDSN participants under the following circumstances:
 - Participant/responsible party must be notified of the employee's SLED criminal background, i.e., felony conviction, and year of conviction;
 - Provider must obtain a written statement, signed by the participant/responsible party acknowledging awareness of the employee's SLED criminal background and agreement to have the employee provide care; this statement must be placed in the participant record.

Potential administrative/office employees with non-violent felony convictions dating back ten (10) or more years can work in the agency at the provider's discretion.

Hiring employees with misdemeanor convictions will be at the provider's discretion. Employees hired prior to July 1, 2007, and continuously employed since then will not be required to have a SLED criminal background check.

- b. The provider must check the OIG exclusions lists for all staff prior to hire then at least every two years thereafter. A copy of the search results page must be maintained in each employee's personnel file. Anyone on the OIG Registry is not allowed to provide services to waiver participants or participate in any Medicaid funded programs. The website addresses are listed below:

OIG Exclusions List: <https://exclusions.oig.hhs.gov/>

- c. PPD Tuberculin Test Please refer to the Department of Public Health (DPH) website for PPD Tuberculin test requirements.

<https://scdhec.gov/sites/default/files/media/document/R.61-122.pdf>

For additional information, providers must contact the Tuberculosis Control Division, Department of Public Health, 1751 Calhoun Street, Columbia, SC 29201, phone (803) 898-0558.

- 3. The provider must maintain a personnel file for each staff member and document that they have met the above requirements.
- 4. Minimum training for Licensed Practical Nurses and Registered Nurses:
 - a. The provider assures SCDHHS that the nurse has adequate experience and expertise to perform the skilled services ordered by the physician that may include the skills necessary to care for a Participant who requires but is not limited to tracheostomy, mechanical ventilator assistance, gastrostomy or jejunostomy tubes, and indwelling catheters.
 - b. The provider must provide a minimum of six (6) hours relevant in- service training per year (based on date of employment) for each nurse.

E. Conduct of Service

- 1. The provider shall provide SCDHHS with a list of regularly scheduled holidays for the coming calendar year each September. The Provider is not required to
- 2. furnish services on regularly scheduled holidays. The Provider must not be closed for more than two (2) consecutive days, except when a holiday falls in conjunction with a weekend. In that case, the Provider may be closed for not more than four (4) consecutive days.
- 3. The provider must adhere to any other criteria as established and disseminated by SCDHHS.
- 4. An individual participant record must be maintained.
- 5. The provider must be responsible for procuring the direct care orders from the physician prior to the start of services.
- 6. Skilled Respite services must begin on the date and time negotiated by the

- Care Coordinator and the provider in accordance with the family's requests.
7. The provider must send a treatment plan to the Care Coordinator which includes treatment goals, after completion of the first respite visit. If applicable, recommendations to change the service schedule from that of the initial Service Authorization Form may be sent to the Care Coordinator at that time.
 8. The provider must comply with the South Carolina Child Protection Reform Act (S.C. Code Ann. § 63-7-10 et seq. (Supp. 2008)), which requires the reporting of any suspected abuse, neglect or exploitation of a child aged 17 and under as defined in the Act.
 9. The Skilled Respite service must not be provided prior to the authorized start date as stated on the Service Provision Form.
 10. The provider must notify the Care Coordinator within two (2) working days of the following participant changes:
 - a. Participant's condition has changed, and the Care Plan no longer meets the participant's needs or the participant no longer needs Skilled Respite services.
 - b. Participant is institutionalized, dies or moves out of the service area.
 - c. Participant no longer wishes to receive the Skilled Respite service.
 - d.
 - e. Knowledge of the participant's Medicaid ineligibility or potential ineligibility.
 11. The provider must receive a Service Provision Form for Skilled Respite services designating the amount, frequency, and duration of service for participants in accordance with the participant's Care Plan. Service Provision Form must be maintained in the participant's file.

F. Administrative Requirements

1. The provider must inform SCDHHS of the provider's organizational structure including the Provider personnel with authority and responsibility for employing qualified personnel, ensuring adequate staff education, in-service training and employee evaluations. The provider agency shall notify SCDHHS within three (3) working days in the event of a change in the agency administrator, address, phone number or an extended absence of the agency administrator.
2. The provider must provide SCDHHS with a written document showing the organization, administrative control and lines of authority for the delegation of responsibility down to the hands-on participant care level staff at contract implementation. The document must include an organizational chart

including names of those currently in the positions. Revisions or modifications to this organizational document must be provided to SCDHHS. It is recommended that this document be readily accessible to all staff.

3. Administrative and supervisory functions shall not be delegated to another agency or organization.
4. The provider agency shall acquire and maintain for the duration of the contract liability insurance and worker's compensation insurance as provided in Article IX, Section D of the Contract. The provider is required to list SCDHHS – LTSS as a Certificate Holder for informational purposes only on all insurance policies using the following address: Post Office Box 8206, Columbia, SC 29202-8206.
5. The provider must develop and maintain a Policy and Procedure Manual that describes how activities must be performed in accordance with the terms of the requirements of the contract. The Policy and Procedure Manual shall be available during office hours for the guidance of the governing body and personnel and must be made available to SCDHHS upon request.
6. The provider must comply with Article IX, Section Z of the Contract regarding safety precautions. The provider must also have an on-going infectious disease program to prevent the spread of infectious diseases among its employees. At minimum, the infectious disease program must include the following:
 - a. Definition of infectious disease
 - b. How an infectious disease is spread
 - c. How to provide services in a way that prevents the spread of an infectious disease
7. The provider shall ensure that key agency staff are accessible in person, by phone, or by beeper during compliance review audits conducted by SCDHHS and/or its agents.
8. The provider must ensure that its office is open and staffed by qualified personnel during the hours of 10:00 am to 4:00 pm., Monday through Friday. Outside of these hours, the Provider agency must be available by telephone during normal business hours, 8:30 am to 5:00 pm, Monday through Friday. Failure to maintain an open and staffed office as indicated must result in sanctions as outlined in section G, last paragraph. The provider must also have a number for emergencies outside of normal business hours. Participant and personnel records must be maintained at the address indicated in the contract and must be made available, upon request, for review by SCDHHS.
9. The provider must have a written back-up service provision plan in place to ensure that the Participant receives the authorized respite services. Whenever the Provider determines that services cannot be provided as

authorized, the Care Coordinator or Care Advocate must be notified immediately by telephone. The provider must maintain documentation of the use of the backup plan in the participant's file.

10. The provider shall update holidays in Phoenix; the provider is not required to furnish services on those days. The provider agency must not be closed for more than two (2) consecutive days at a time, except when a holiday falls in conjunction with a weekend. If a holiday falls in conjunction with a weekend, the provider agency may be closed for not more than four (4) consecutive days.
11. Providers may request educational training provided by SCDHHS at any time by making an email request to:

Provider-distribution@scdhhs.gov